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File No.: EXP202201238

RESOLUTION OF ARCHIVE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following:

FACTS

FIRST: On December 2, 2021, a complaint was filed with the Spanish Agency for Data Protection against BANCO BILBAO VIZCAYA ARGENTARIA, S.A. with NIF A48265169 (hereinafter, the complained party or BBVA).

The reasons for the complaint are as follows:

The complainant requested the AEPD to ask the entity XXXX BBVA for written justification, the contract that supports the communication to the Central Risk Information of the Bank of the risks reported. These are as follows:

Operation code ***CODE.1 for an amount of ***AMOUNT.1 euros on the declaration date 07-2021.

Operation code ***CODE.2 for an amount of ***AMOUNT.2 euros on the declaration date 07-2021.

Operation code ***CODE.3 for an amount of ***AMOUNT.3 euros on the declaration date 07-2021.

And requested the AEPD to act against BBVA if it did not present such documents, such contracts that support the communication of the listed risks, and to compel the entity BBVA to immediately cancel any communication of loan or credit and to remove any communication of default to public or private files, such as ASNEF-EQUIFAX, RAI, BADEXCUG, ETC.

Without attaching any documentation to the written complaint.

A new complaint was filed on December 9, 2021, in which the same statements as in the previous complaint were made. However, on this occasion, a series of attached documents were provided on which the request is based.

On April 21, 2022, the complainant, as a continuation of the previous complaints, made the following statements:

That in the previous complaint, it was requested that the AEPD ask for the deletion of any communication or record of default made to public and private files, as well as the disagreement regarding the communication of debtor positions at BBVA.

That BBVA be requested to prove such debtor positions through a contract.

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And that in case of not proving the debtor positions, it was requested that all data related to them be deleted and that my data be canceled from all delinquency files, public or private, in which I may have been included.

That upon receiving the admission agreement for processing the complaint filed with the AEPD, it was forwarded to BBVA via the emails ***EMAIL.1 and ***EMAIL.2. And that responses are attached.

According to the documentation attached to the complaint of December 9, 2021, the complained party communicated the inclusion on July 26, 2020, of the complainant in the BADEXCUG file regarding defaults on monetary obligations, owned by the entity Experian, for non-payment of three personal loans amounting to the following amounts:

- Personal loan 1: XX.XXX,XX €

- Personal loan 2: XX.XXX,XX €

- Personal loan 3: XX.XXX,XX €

Additionally, in the Risk Report of the Central Risk Information of the Bank of Spain (hereinafter CIRBE) regarding the data of operations reported in July 2021 by the complained party, the complainant's data appears in relation to the following operations:

- Operation code ***CODE.1 for an amount of ***AMOUNT.1 euros on the declaration date 07-2021.
- Operation code ***CODE.2 for an amount of ***AMOUNT.2 euros on the declaration date 07-2021.
- Operation code ***CODE.3 for an amount of ***AMOUNT.3 euros on the declaration date 07-2021.
And in the complaint filed by the complainant with the CIRBE against the operations declared by the complained party, it is stated that the reason for the complaint is that the declared debt does not correspond to him.

It is noted in the response from the Financial Information Department and CIR of the Bank of Spain, dated September 27, 2021, that the complainant is informed that their complaint is being processed and that while awaiting a response from the complained party, the information provided by it will be blocked. Furthermore, it is informed that the CIR is not a professional solvency registry, but a public service that manages a database in which practically all loans, credits, guarantees, and risks in general that financial entities have with their clients are recorded.

According to the documentation provided by the complainant in their writing of 04/21/2022, the complained party in its response of 02/24/2022 states that the operation codes:

***CODE.4

***CODE.5

***CODE.6

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They relate to the contracts.

- ***CONTRACT.1

- ***CONTRACT.2

- ***CONTRACT.3

Furthermore, the responding party states that the inclusion of the data of the responding party in the ASNEF/EQUIFAX and EXPERIAN/BADEXCUG files was due to the existence of outstanding balances on some of the products contracted by the claiming party, basically in the contracts identified with numbers ***CONTRACT.1, ***CONTRACT.2, and ***CONTRACT.3. This situation was communicated to the claiming party through a payment demand dated 08/08/2017.

In relation to the request for a copy of the contracts that support debtor positions based on the exercise of the right of access in data protection matters, it indicates that access to specific documents is not part of the content of the right of access since such documents may contain information related to third parties.

Relevant documentation provided by the claiming party:

Risk report from the Bank of Spain

Communications of inclusion in the EXPERIAN/BADEXCUG file dated 26/07/2020.

Claim before the Central Risk Information of the Bank of Spain and response from that agency.

Response from BBVA dated 24/02/2022 and attachments.

Email sent to ***EMAIL.3, and to ***EMAIL.2 and its response.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), the aforementioned claim was forwarded to the responding party/ALIAS, so that it could analyze it and inform this Agency within one month of the actions taken to comply with the requirements established in the data protection regulations.

The transfer, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on February 3, 2022, as noted in the acknowledgment of receipt in the file.

On February 15, 2022, a response was received in this Agency indicating that the information request is being processed.

THIRD: On March 7, 2022, in accordance with Article 65 of the LOPDGDD, the claim submitted was

admitted for processing.

FOURTH: The General Sub-Directorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following points:

On April 25, 2022, the responding entity submitted a response to the transfer request, in which it states the following:

IN RELATION TO POINT 2 and 4 OF THE REQUEST: on December 16, 2021, the Customer Service (hereinafter, the "SAC") communicated in writing to the claiming party the decision agreed upon by my represented party regarding the claim submitted to this Agency, as evidenced in Document No. 1 provided.

IN RELATION TO POINTS 1, 3, 5, 6, and 7 OF THE REQUEST, it states that: the incident that has led to the information request being responded to is due to the claimant stating that their data is being reported by the claiming party to the Central Risk Information of the Bank of Spain, in relation to a debt that they do not acknowledge. Consequently, it requests that any communication of non-payment made to public and private files be canceled.

The responding party deemed it necessary to complement the account of the facts and provide documentation regarding the three loan operations referred to by Mr. A.A.A. in his claim letter.

Mr. A.A.A. provided services for Catalunya Banc, S.A. (now BBVA) from 10/20/2004 to 04/04/2014, at which time he held the position of ***POSITION.1. The aforementioned loans were granted by Catalunya Banc, S.A. to Mr. A.A.A. in his capacity as an employee (without notarial intervention). It is evidenced by the documentation provided below that Mr. A.A.A. attended to the payment of the installments of the aforementioned loans from their formalization until mid-2018.

(i) Movements Loan XXXXXXXXXXXXXXXXXXXX initially identified with number XXXXXXXXXXXXXXXXXXXX formalized on 01/23/2013 for an amount of 24,000 euros, Document No. 2.

Minutes of the establishment of overdue balance dated 01/23/2020, Document No. 3.

(ii) Movements Loan XXXXXXXXXXXXXXXXXXXX initially identified with number XXXXXXXXXXXXXXXXXXXX formalized on 12/10/2009 for an amount of 141,554 euros, Document No. 4.

Minutes of the establishment of overdue balance dated 09/12/2019, Document No. 5.

(iii) Movements Loan XXXXXXXXXXXXXXXXXXXX initially identified with number XXXXXXXXXXXXXXXXXXXX formalized on 12/10/2009 for an amount of 230,926 euros, Document No. 6.

Minutes of the establishment of overdue balance dated 09/12/2019, Document No. 7.

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While the purpose of loans (ii) and (iii) was the acquisition of a home, the operations are not secured by real guarantees but are complementary to the mortgage loan granted on the same day, 10/12/2009, and formalized at the Notary Office of B.B.B., under protocol number 3428 for an amount of 3,000 euros. The aforementioned deed indicates the formalization of other personal loans contracted by the claimant for the acquisition of the home.

It transcribes part of the deed relating to the Causes of resolution and early maturity, listing among the "I. SPECIAL" causes that: "Since this loan is granted by the Caja to the borrower in their capacity as an employee of the same (...) it will be a cause for early maturity and execution of this mortgage loan: (...) as well as, in the event that they have been granted, the failure to pay an installment of interest or amortization of the loan or complementary personal loans granted for the acquisition of the home that is mortgaged, once thirty days have passed since its due date."

In the cited transcription, it is highlighted in yellow "complementary personal loans granted for the acquisition of the home that is mortgaged."

It provides certificates of notification of the telegrams sent by the responding party communicating to the claimant the existence of an outstanding debt related to the operations subject to the filed claim

(the certificates have been issued by the entities Sociedad Estatal Correos y Telégrafos and Logalty Servicios de Tercero de Confianza, S.L.)

On June 7, 2022, a request for information is notified to the responding party to provide information on the following aspects:

1. Copy of the data they have on the affected party
2. Date on which the aforementioned data was collected by their entity
3. Purpose of the processing of such data
4. Source of the personal data of the affected party.
5. Source of the debt incurred with their entity, as well as the conditions for its enforceability (they must provide all documentation that allows for the verification of the origin of the debt, including contracts, assignments of credit portfolios, etc.), in particular:
 - a. Justifying documentation of the legal title for the subscription of loan 0083/10817 that corresponds to the operation code declared to the C.I.R. of the Bank of Spain:
XXXXXXXXXXXXXXXXXXXXXXXXXXXXXXXXXXXX.
 - b. Justifying documentation of the legal title for the subscription of loan 0083/10741 that corresponds to the operation code declared to the C.I.R. of the Bank of Spain:
XXXXXXXXXXXXXXXXXXXXXXXXXXXXXXXXXXXX.
 - c. Justifying documentation of the legal title for the subscription of loan 0083/10815 that corresponds to the operation code declared to the C.I.R. of the Bank of Spain:
XXXXXXXXXXXXXXXXXXXXXXXXXXXXXXXXXXXX.

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6. Copy of the communications to the files regarding defaults on monetary obligations (BADEXCUG, ASNEF), of the claimant's data (indicating communication dates, debts communicated, etc.).

On June 29, 2022, BBVA submitted a request for an extension of the deadline to respond to the request.

On December 29, 2022, the previously made request is reiterated.

The responding party replies to this request on January 3, 2023, and provides additional information on January 12, supplying additional information regarding the data they have on the claimant, the date it was collected, and the purpose of the processing.

Regarding the claimant's data, BBVA provides a copy of the data they have on the claimant, indicating:
I.- ORIGIN AND PURPOSES OF PROCESSING

The personal data held by this entity has been provided by our client. Additionally, personal data has been generated during the contractual relationship between the parties as a result of managing that relationship.

As for the purposes, it provides a detailed list of the purposes for which the data collected by the responding entity will be processed, as well as an indication of to whom they may be transferred.

II. CATEGORIES AND DATA SUBJECT TO PROCESSING:

Categories:

- Identifying data
- Identifying and contact documents
- Economic activity declaration data
- Data of active contracts with the Bank or Accounts or Deposits or Cards or Pension Plans or Securities or MIFID classification of the client.

Data subject to processing, obtained from the Economic Activity Declaration upon client registration, signed 16.09.2016, includes:

NAME: LAST NAME 1: LAST NAME 2: COUNTRY OF BIRTH: DATE OF BIRTH: GENDER: MALE ID
NUMBER: TAX ADDRESS: LOCALITY: POSTAL CODE: PROVINCE: COUNTRY: PHONE: EMAIL:
OCCUPATION:

Contracts (list of current contracts in our Entity and the quality of the interested party's involvement in them)

Accounts XXXXXXXXXXXX ACCOUNT ELECTION HOLDER

Loans:

XXXXXXXXXXXXXXXXX GENERAL CONSUMPTION CX HOLDER

XXXXXXXXXXXXXXXXX GENERAL CONSUMPTION CX HOLDER

XXXXXXXXXXXXXXXXX GENERAL MORTGAGE CX HOLDER

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XXXXXXXXXXXXXXXXX GENERAL CONSUMPTION CX HOLDER

MIFID classification carried out by the Entity in your name:

III.- RECIPIENTS OR CATEGORIES OF RECIPIENTS TO WHOM PERSONAL DATA HAS BEEN OR WILL BE COMMUNICATED. It is indicated that as a general rule, your personal data will not be transferred to third parties, unless we are obliged by law or you have previously agreed with BBVA.

In order to provide you with an adequate service and manage the relationship we maintain with you as a client, below you will find a list by categories of the companies that process your data on behalf of BBVA, as part of the provision of services we have contracted, with these companies acting as data processors. Place of provision of the related services: Spain.

Furthermore, we inform you that for the same purpose as indicated (to provide you with an adequate service and manage the relationship we maintain with you as a client) and also acting as data processors for BBVA, the companies listed below may also have access to your data, and are located outside the European Economic Area, which means that international data transfers would occur, always legally covered by instruments issued by the European Union for this purpose, such as standard contractual clauses, certification mechanisms, and adequacy decisions.

Also provided is the Document "Customer Identification, Economic Activity Declaration, Personal Data Processing, and Digitized Signature" and "Multichannel Contract," both dated September 16, 2016.

In relation to communications to files regarding non-compliance with monetary obligations, tables of communications with ASNEF/EQUIFAX are provided indicating the inclusion date of September 7, 2017, and exclusion date of July 24, 2020. And with EXPERIAN/BADEXCUG, inclusion date of September 10, 2017, and exclusion date of April 10, 2022.

It is stated that as of the date of response to the request, the claiming party is not being declared in any file regarding non-compliance with monetary obligations by the claimed party.

Regarding information on overdue loans and the contracting conditions considering the claimant's employment situation with the entity, the claimed party states that:

Mr. A.A.A. is listed as the holder of three overdue loans:

The operations were formalized at the offices:

Branch 2013 1797 CATALUNYA-BANC in Alcalá de Henares, Mr. A.A.A. held the position of (...) at the aforementioned branch in December 2009, the time of contracting:

1. GENERAL CONSUMPTION CX - XXXX XXXX XXXXXX initial amount XXXXXX euros.

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2. GENERAL CONSUMPTION CX - XXXX XXX XXXXXX initial amount XXXXXX euros. The previous loans serve as a complement to a mortgage loan operation under employee conditions, Document No. 5 "Mortgage Loan Deed" for the amount of XXXX euros formalized on December 10, 2009, loan number XXXX-XXXX XXXXXX. Below is a capture of the description of financing for employees, Document No. 6.

Regarding the assertion that the previous loans serve as a complement to a mortgage loan operation under employee conditions, Document No. 5 "Mortgage Loan Deed" for the amount of 3,000 euros formalized on December 10, 2009, is attached. This is not stated in the mortgage loan deed set aside as Document No. 5; what the deed states – in relation to the Causes of resolution and early maturity "1. SPECIAL" is that: "Since this loan is granted by the Caja to the borrower in their capacity as an employee of the same (...) it will be a cause for early maturity and execution of this mortgage loan: (...) as well as, in the event that they have been granted, the failure to pay an installment of interest or amortization of the loan or complementary personal loans granted for the acquisition of the property being mortgaged, once thirty days have passed since its maturity." (The underlining is from the AEPD). Branch XXXXX CATALUNYA-BANC at C/ XXXXXX, Mr. A.A.A. held the position of XXXXXX at the time of contracting.

3. GENERAL CONSUMPTION CX – XXXXXXXX XXXXXXXXX initial amount 24,000 euros.

In relation to the aforementioned loans, the following documentation is attached for each loan:

- Account movements that prove the payment of the loans into Mr. A.A.A.'s account for their amounts.
- Loan movement
- Overdue situation inquiry
- Loan application

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred on each supervisory authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and guarantee of digital rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

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Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Claims of the complainant

In the complaints submitted to this Agency by the complainant against BBVA, the complainant requested the AEPD to act against BBVA if it did not present the loan contracts signed between both parties (these contracts support the communication of risks to solvency files and to CIRBE), and to compel BBVA to immediately cancel any communication of loan or credit and to remove any communication of default to public or private files, such as ASNEF-EQUIFAX, RAI, BADEXCUG, etc. The complainant had requested from the defendant the contracts that supported the communication to the Central Risk Information of the risks that had been reported about him.

BBVA did not have those contracts, although there are notarial records that establish the balances of the loans and the settlement of one of them.

In the document submitted by BBVA on April 25, 2022, document 3A: Notarial record, dated January 23, 2020, of balance fixation. On page 3 of that document it states, "That on January 23, 2013, a loan policy was formalized between the entity Banco Bilbao Vizcaya, S.A., and Mr. A.A.A., for an amount..." Document 7A: is a notarial record, dated September 12, 2009, of the settlement of the loan formalized by the complainant on September 10, 2009.

In the document submitted by BBVA on January 3, 2023, document No. 5: a notarial record of mortgage loan to the complainant dated December 10, 2009.

The loans were contracted with the entity Catalunya Bank, S.A. (an entity purchased by BBVA in 2015), where the complainant worked as a branch manager until 2014. The loans were granted in the capacity of an employee of the banking entity without notarial intervention. The complainant paid the loans until 2018, so his data were reported to asset solvency and credit files; as well as the risk assumed from the moment of their granting was reported to CIRBE.

On September 27, 2021, the information provided to CIRBE was blocked, and in July 2020 and April 2022, the communication of defaults to ASNEF and BADEXCUG was suspended, respectively.

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III

Conclusion

It has been established that BBVA processed the data of the complainant derived from the existing contractual relationship between both parties (Documents "Customer Identification, Economic Activity Declaration, Personal Data Processing and Digital Signature" and "Multichannel Contract," both dated 09/16/2016).

It has been established that the defendant has transferred the complainant's data to CIRBE and to files regarding defaults on monetary obligations BADEXCUG and ASNEF, a possibility that is included in Annex I of the multichannel contract in which the complainant is informed of the possibility that the defendant may carry out communications to third parties, including CIRBE and companies related to asset solvency or credit of monetary obligations.

Furthermore, at the time of filing the complaint, the complainant's data were only still reported in the Experian file and were canceled immediately.

Therefore, based on the information provided in the previous paragraphs, no evidence has been found to substantiate the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection.

Thus, in accordance with the aforementioned, by the Director of the Spanish Agency for Data Protection,

IT IS AGREED:

FIRST: TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to BANCO BILBAO VIZCAYA ARGENTARIA, S.A., and to the complainant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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